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## **Solicitation/Contract Form Continuation**

Production Support - Forklift

## Continuation of Supplies or Services and Prices/Costs

### Additional Information/Notes

| Item | Supplies/Service                                                                                                                                                                                                                                                                                                                                   | Quantity | Unit  | Unit Price | Amount |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-------|------------|--------|
| 0001 | <p>A112A Forklift Operator; Hourly Rate<br/>The Contractor shall provide labor in accordance with PWS Section 2.1 for Forklift Operator support. All required labor hours and the corresponding FullTime Equivalent (FTE) calculations are defined in the PWS.</p> <p>Pricing Arrangement: Fixed Price Level of Effort</p>                         | 32,416   | Hours |            |        |
| 0002 | <p>A112A Forklift Operator; O.T. Rates<br/>The Contractor shall provide labor in accordance with PWS Section 2.1 for Forklift Operator support. All required labor hours and the corresponding FullTime Equivalent (FTE) calculations are defined in the PWS.</p> <p>Pricing Arrangement: Fixed Price Level of Effort</p>                          | 8,104    | Hours |            |        |
| 0003 | <p>A112B Forklift/Aerial Lift Operator; Hourly Rate<br/>The Contractor shall provide labor in accordance with PWS Section 2.1 for Forklift/Aerial Lift Operator support. All required labor hours and the corresponding FullTime Equivalent (FTE) calculations are defined in the PWS.</p> <p>Pricing Arrangement: Fixed Price Level of Effort</p> | 30,592   | Hours |            |        |
| 0004 | <p>A112B Forklift/Aerial Lift Operator; O.T. Rate<br/>The Contractor shall provide labor in accordance with PWS Section 2.1 for Forklift/Aerial Lift Operator support. All required labor hours and the corresponding FullTime Equivalent (FTE) calculations are defined in the PWS.</p> <p>Pricing Arrangement: Fixed Price Level of Effort</p>   | 7,648    | Hours |            |        |
| 0005 | <p>A114A Program Manager; Hourly Rate<br/>The Contractor shall provide labor in accordance with PWS Section 2.1 for Program Manager support. All required labor hours and the corresponding FullTime Equivalent (FTE) calculations are defined in the PWS.</p> <p>Pricing Arrangement: Fixed Price Level of Effort</p>                             | 480      | Hours |            |        |
| 0006 | <p>A114B Project Manager; Hourly Rate<br/>The Contractor shall provide labor in accordance with PWS Section 2.1 for Project Manager support. All required labor hours and the corresponding FullTime Equivalent (FTE) calculations are defined in the PWS.</p> <p>Pricing Arrangement: Fixed Price Level of Effort</p>                             | 2,000    | Hours |            |        |
| 0007 | <p>A114B Project Manager; O.T. Rate<br/>The Contractor shall provide labor in accordance with PWS Section 2.1 for Project Manager support. All required labor hours and the corresponding FullTime Equivalent (FTE) calculations are defined in the PWS.</p> <p>Pricing Arrangement: Fixed Price Level of Effort</p>                               | 238      | Hours |            |        |
|      |                                                                                                                                                                                                                                                                                                                                                    |          |       |            |        |

|      |                                                                                                                                                                                                                                                                                                              |        |       |  |  |
|------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------|-------|--|--|
| 0008 | <p>A114C Supervisor; Hourly Rate<br/>The Contractor shall provide labor in accordance with PWS Section 2.1 for Supervisor support. All required labor hours and the corresponding FullTime Equivalent (FTE) calculations are defined in the PWS.</p> <p>Pricing Arrangement: Fixed Price Level of Effort</p> | 11,472 | Hours |  |  |
| 0009 | <p>A114C Supervisor; O.T. Rate<br/>The Contractor shall provide labor in accordance with PWS Section 2.1 for Supervisor support. All required labor hours and the corresponding FullTime Equivalent (FTE) calculations are defined in the PWS.</p> <p>Pricing Arrangement: Fixed Price Level of Effort</p>   | 2,295  | Hours |  |  |
| 0010 | <p>CDRLs</p> <p>Pricing Arrangement: Fixed Price Level of Effort</p>                                                                                                                                                                                                                                         |        | Job   |  |  |

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2.2. Contractor forklift operators (A112A) are to be certified up to 36,000 lbs. and expected to lash downloads on a pallet and act as forklift spotters forward and behind during all forklift operations to ensure the intended path of travel is clear. Contractor forklift spotters shall be equipped with whistles to sound that the forklift is in motion.

2.3. Contractor forklift/aerial lift operators (A112B) are to be certified up to 36,000 lbs. and certified at the height of 120 ft. in the operation of an Articulating Boom Lift.

### **3. Description and Specifications**

3.1. All work shall be accomplished in accordance with federal, state and local environmental and safety laws and regulations.

### **4. Coordination Process**

4.1. All communication pertaining to any aspect of this requirement shall be conducted via the designated Government Contracting Officer's Representative (COR), Alternate COR (ACOR) or other Designated Representative, as assigned by the Contracting Officer in the COR's absence. For the purposes of this requirement, a Designated Representative is defined as any NNSY Zone Manager or General Foreman. The Contractor shall coordinate requirement efforts with the COR, ACOR or the Designated Representative daily.

All communication pertaining to any aspect of this requirement shall be conducted via the designated Government Contracting Officer's Representative (COR), Alternate COR (ACOR) or other Designated Representative, as assigned by the Contracting Officer in the COR's absence. The Contractor shall coordinate requirement efforts with the COR, ACOR or the Designated Representative daily.

4.1.1. NNSY COR: TBD

4.1.2. NNSY ACOR: TBD

4.1.3. NNSY CONTRACTING OFFICER: TBD

### **5. On-site/Off-site Supervision:**

5.1. Work assignments will be delivered to the Contractor via the designated NNSY Designated Representative. The Designated Representatives and/or COR are the liaisons between the Government and the Contractor(s). The Contractor Project Managers and Supervisors will supervise and direct the contractor employees. The Contractor Supervisor shall be responsible for disseminating work assignments to contractor employees and providing direct supervision for the duration of the work assignment(s). Contractor employees and Supervisor shall be present during job briefings conducted by NNSY Government Supervisors. Contractor employees are not to lead work assignments. For critical steps designated by the NNSY Supervisor or the Technical Work Documents (TWDs), there should be a qualified NNSY representative available for personal observation for the work being performed. Contractor employees will perform jobs with stopping points identified during the job briefing. This will allow the qualified NNSY representative to have personal observation and sign for necessary verification signatures. Contractor shall provide and maintain qualified personnel in the positions designated as "key personnel" for the following positions.

#### **5.1.1 Program Manager shall:**

5.1.1.1 Manage Contractor Project Manager, Supervisors and employee's assignments to training, ships, shifts of work, discipline, safety, rewards, promotion, attendance, time-off (i.e., sick and/or annual leave) and work performance. Not required to be on NNSY worksite, but to always be readily available.

5.1.1.2 Ensure daily onboard counts of forklift drivers are reported to the NNSY Designated Representative electronically via e-mail at least once per week by the Daily Skill Tracker.

5.1.1.3 Resolve contractor personnel problems i.e., conflict resolution and administrative actions (all contractor disciplinary actions requiring written documentation shall be reported to C440 COR via email) affecting the contractor's employees and ensure information is coordinated with C440 COR to provide communication with KO. C900R will communicate with the Project.

5.1.1.4 Provide overall management, oversight and supervision (and/or lead workers) to effectively and safely manage the work of this requirement including trade specific proficiency testing.

5.1.1.5 Ensure that a Project Manager or a Contractor Supervisor is always physically available to the contracted and government workforce during working hours.

5.1.1.6 Ensure overall management of accurate tracking of hours worked by contractor personnel, Supervisors, and Project Managers.

5.1.1.7 Ensure that all training records and qualifications are reported to code 900R and Code 400 in a timely manner

#### 5.1.2 Project Manager shall:

5.1.2.1 Manage contractor Supervisors and employees' assignments to training, ships, shifts of work, discipline, safety, rewards, promotion, attendance, time-off (i.e., sick and/or annual leave) and work performance.

5.1.2.2 Ensure daily onboard counts of forklift drivers are reported to the NNSY Designated Representative electronically via e-mail at least once per week.

5.1.2.3 Be on NNSY worksite at least 50% of the time to have a face-to-face meeting with code 900R and always be readily available.

5.1.2.4 Resolve contractor personnel problems i.e., conflict resolution and administrative actions (all contractor disciplinary actions requiring written documentation shall be reported to Program Manager via email) affecting the contractor's employees and coordinate with code 400 and 900R.

5.1.2.5 Maintain accurate tracking of hours worked by contractor personnel and Supervisors.

5.1.2.6 Ensure that Contractor Supervisor is always physically available to the workforce.

5.1.2.7 The Project Manager shall fill in if Supervisors is unable to report to work and perform the duties of a Supervisor.

5.1.2.8 Support all meetings and telecoms, inspections, quality audits and reporting requirements.

#### 5.1.3: Contractor Supervisor shall:

5.1.3.1 Manage contractor employees' assignments to training, ships, shifts of work, discipline, safety, rewards, promotion, attendance, time-off (i.e., sick and/or annual leave) and work performance.

5.1.3.2 Provide adequate supervision to oversee the assigned contractor personnel and ensure the proper execution of the jobs described herein to include trade specific proficiency testing.

5.1.3.3 Must always be 100% physically available to the workforce.

5.1.3.4 Ensure daily onboard counts of forklift drivers are reported to the NNSY Designated Representative electronically via e-mail at least once per week. Refer to CDRL A003.

5.1.3.5 Maintain accurate tracking of hours worked by contractor personnel.

5.1.3.6 Maintain total program oversight of contractor personnel.

5.1.3.7 Manage assignment of contractor personnel to training, shifts and projects.

5.1.3.8 Provide overall management, oversight and supervision (and/or lead workers) to effectively and safely manage the work of this requirement including trade specific proficiency testing.

5.1.3.9 Resolve contractor personnel problems i.e., conflict resolution and administrative actions (all contractor disciplinary actions requiring written documentation shall be reported to Project Manager via email) affecting the contractor's employees.

5.1.3.10 In the absence of the Supervisor the Project Manager shall fulfill the duties as outlined for Contractor Supervisor.

## **6. Requirements**

**6.1. PERIOD OF PERFORMANCE (POP):** May 01, 2026, to April 30, 2027.

**6.2. Program Manager, Project Manager, Shift Supervisor, and Drivers** start May 01, 2026.

**6.3. HOURS OF WORK:** The Contractor shall observe the same holidays, curtailments, and other work shutdowns as the Government.

6.3.1. Contractor personnel shall work any of NNSY's standard work shifts. NNSY's normal eight-hour work shift hours are as follows: 1st 0720-1600 hours, 2nd 1530-2400 hours, and 3rd 2330-0740 hours with forty (40), thirty (30) and ten (10) minutes for lunch respectively. NNSY may adjust work shift hours to other timeframes to support shipyard workforce capabilities. The COR will notify the contractor when a request for a change of contractor's work shift is required. The Government will not compensate the Contractor for scheduled labor hours that the contractor employees did not work. Employees may be assigned to different shifts and workweeks and shall be rotated or shifted to support the workload demands. During summer hours, each shift begins one hour earlier. Contractor personnel may be required to work first, second or third shift, weekends, early shifts, extended shifts and holidays. In this event the Contractor Supervisor will schedule contractor personnel for overtime and will route it through the NNSY COR or Designated Representative for concurrence.

**6.4. SUPERVISION:** The Contractor shall provide dedicated on-site supervisors. Supervisor request is based on the total number of drivers executing requirement per month and not trade specific.

**6.5. QUALITY CONTROL:** NNSY has the right to inspect work performed by the contractor to ensure the work meets acceptance criteria.

**6.6. REQUIREMENT EXECUTION:** At various times throughout the life of this requirement, Contractor touch labor personnel at NNSY may be required to support NNSY in such efforts such as a bi-monthly (every two months) NNSY "Clean the Shipyard Day", shipyard safety efforts as required, NNSY emergency weather plans and other planned and/or unplanned events requiring trades personnel to provide effort and support that would normally be considered "housekeeping" both shipboard and on NNSY property. Contractor touch labor personnel will be required to clean their workstations or work areas daily.

**6.7. PERSONNEL CHANGE OUT:** Contractor personnel assigned to fulfill a requirement are expected to complete the job. Once contractor personnel are assigned, change out of these personnel shall not occur without prior notification to the NNSY COR or Designated Representative in writing.

6.7.1. The Contractor shall notify the Contracting Officer and NNSY COR or Designated Representative in writing within three business days of any contractor personnel replacement action. A replacement action is when any expected contractor personnel is reassigned, removed, or exchanged with another unexpected or unassigned person.



The Contractor shall notify the Contracting Officer and COR within two days after a contractor personnel leaves and two weeks prior to arrival of replacement contractor personnel. The Contractor shall provide the COR or Designated Representative with an updated Touch Labor Resource Management and Skills Tracker worksheet highlighting the changes in replaced/replacement personnel.

#### 6.8. TRAINING:

6.8.1. Contractor Provided Training: All contractor personnel performing work under this contract shall complete all the training outlined in this section prior to reporting to work under any requirement awarded under this contract. The Contractor shall provide verification that each contractor employee performing work under this contract and each requirement is qualified with regard to the requirements specified below. Refer to CDRL A003.

Hazard Communication per 29 CFR 1915.1200 and Local Instruction NAVSHIPYDNORINST P5090.2 Vol III Chap 5

Respirator per 29 CFR 1910.134, Contractor employees shall be trained and fit tested using NIOSH-approved respirators.

Asbestos per 29 CFR 1915.1001; 40 CFR 763, Subpart E and NAVSHIPYDNORINST P5090.2 Vol II Chap 23

Lead per 29 CFR 1915.1025

Chromium (VI) per 29 CFR 1915.1026

Fall Protection per 29 CFR 1915 Subpart E and 29 CFR 1926.1423

NAVSEA Standard Item 009-74 Occupational, Safety and Health Requirements

Fire and Tank Watch 29 CFR 1915.508(c)

Shipyard Mandatory Annual Training

The Shipyard Mandatory Annual Training material will be provided to the Contractor by the NNSY Designated Representative and/or COR at contract award. Refer to CDRL A009. The Contractor shall administer the training material prior to onboarding. A Shipyard Mandatory Annual Training Sign-In Sheet shall be completed for each contractor employee prior to onboarding NNSY. The Sign-In Sheet shall be received by the NNSY Designated Representative and/or COR by 12N on the Thursday before contractor employee onboard.

NNSY Provided Orientation and Process Instruction:

All contractor personnel performing work under this contract shall complete all of the training cited below as necessary. Contractor personnel will have a limit of two attempts to achieve a passing grade. Contractor employees who do not pass NNSY Orientation and Process instruction will not be deemed qualified to perform under this contract and will be returned to the contractor for disposition.

Security Indoctrination

Radiological Controls (RADCON)

Block Orientation

Corporate Confined Space Awareness (PS-S9041)

Submarine Worker Indoctrination/SUBSAFE Awareness (G560)

Safety/Non-Nuclear Quality Control Module 6 (G100F)

Skills Validation/Proficiency Demonstration by Trade

The Contractor Supervisor will provide oversight of contractor employee during Skills Validation shop or shipboard environment mockup simulation.

Any Specialty process training required for specific shops as needed.

The initial onboarding date for each trade will be provided to the Contractor by the COR.

Contractor personnel absent on initial onboarding date for each trade shall not onboard onto NNSY until coordination is made with the COR.

Training schedule and coordination for upcoming classes will be provided to the Contractor by the COR.

Must comply with 29 CFR 1915 and 1915.508, Subpart P. Contractor must submit a lesson plan (CDRL A007) within 10 calendar days of award and annually thereafter.

## APPLICABLE DOCUMENTS

Standards/Specifications/References: The following Government documents form a part of this document to the extent specified herein.

NOTE: The Contractor shall comply with the latest revision of all NAVSEA Standard Items and referenced documents in effect at the time of contract award or when each option year is invoked. The Contractor shall comply with all local requirements in addition to State and Federal Environmental, Safety & Health (ESH) regulations.

## **7. Attendance reports**

7.1. The Weekly Attendance report must be validated daily by the NNSY Supervisor. The NNSY Supervisor shall validate the timesheet with a signature. A copy shall be retained by both the NNSY Supervisor and the Contractor Supervisor throughout the Period of Performance of this requirement.

7.2. All changes to the timesheet shall be corrected by a single line out and initialed by the Contractor Supervisor and NNSY Supervisor.

7.3. The Contractor shall provide the NNSY COR with a copy of the Daily and SIGNED Weekly Attendance Reports.

## **8. Injury Reporting**

8.1. The Contractor is responsible for their personnel's safety. Contractor Management shall inform OSHA, the NNSY Government Contracting Officer (KO), NNSY COR, NNSY ACOR, NNSY Contract Specialist and the on-site NNSY Supervisor of any injuries to Contractor personnel as soon as Contractor Management/Supervision becomes aware of the occurrence. The Contractor shall cooperate with any NNSY Safety Investigations.

8.2. A written report of all injuries and accidents resulting in medical treatment shall be provided to the NNSY COR, NNSY ACOR and the NNSY Code 106 Project Safety Manager within twenty-four (24) hours of the incident. The report shall contain the name of each injured person, date and time of incident/fire, extent of each personal injury or property damage, Contractor/Sub-Contractor name, Job Order/Work Item Number, type of incident/fire, location of event (ship name and hull number, space, compartment), a brief description of the event including occurrences leading up to the incident/fire, equipment involved, Contract Number, witness(es) and individual(s) involved, short term and long term corrective action, and root cause analysis.

## **9. Security, Badging, and Access Requirements**

9.1. For this requirement, all ELINs require Yellow badging.

9.1.1. All contractors executing this contract are required to have a minimum-security clearance of Secret/Yellow Badge (Completed by SME).

9.1.2. All contractors requiring access to classified information, or those spaces containing un-sanitized classified information, shall possess a final security clearance.

9.1.3. In addition to completing the steps above, if the contractor requires access to classified information, spaces, or equipment in accordance with the requirements of the contract, the contracting company's Facility Security Officer is required to submit a visit request in the Defense Information System for Security (DISS) to Security Management Office (SMO) Code 001816.

9.1.4. The SMO Code(s) of the ship or command the contractor is visiting are not to be utilized.

9.1.5. After receiving a DBIDS card, their visit request, security clearance and access permissions (verified in DISS) are reviewed to ensure they meet the minimum-security requirements set forth in the contract. Once verified, the contractor will receive the appropriate NAVSEA access badge.

9.1.6. All contractors, with the exception of permanent party (or "seated" contractors with Common Access Cards (CACs), will be required to obtain a DBIDS card to gain access to NNSY.

9.1.7. Procedure for receiving a DBIDS card:

9.1.7.1. Contractor will complete a SECNAV 5512 form(s) and forward them to their NNSY Sponsor /Contracting Officer's Representative (COR).

9.1.7.2. The sponsor will complete the CVS spreadsheet utilizing the information on the completed SECNAV 5512 form(s) and forward all documents to Commander Navy region Mid-Atlantic (CNRMA) for vetting.

9.1.7.3. CNRMA will add the contractor to the "179-Day List" which is utilized by the Pass and ID office to create the DBIDS card.

9.1.7.4. Once on the 179-Day List, the contractor may go to Pass and ID to have their DBIDS card generated.

9.1.7.5. Green NAVSEA access badges can be generated at this point with contractors providing proof of U.S. Citizenship (Birth Certificate/ US Passport).

## RESTRICTED DATA SPECIFIC

All contractors requiring a red NAVSEA badge and access to Restricted Data (RD) shall have a final security clearance.

Red NAVSEA badge personnel may require access to Nuclear Areas, Nuclear Information, Nuclear equipment, Naval Nuclear Propulsion Information (NNPI), RD, and Not Releasable to Foreign Nationals (NOFORN) data due to the nature of the work being performed on Naval Nuclear propulsion systems.

A red NAVSEA badge is necessary for the execution of nuclear and some non-nuclear work; inclusive of the propulsion plant and secondary spaces as well as those systems which support the propulsion plants which may not be located in the propulsion plant when any of those spaces can't be sanitized.

Access to RD and the issuance of red NAVSEA badges will be issued in accordance with NAVSEA M-5510.2.

## CONTROLLED UNCLASSIFIED INFORMATION ACCESS

The DoD will provide information to contractors and will identify all information which is Controlled Unclassified Information (CUI) via the contracting vehicle, in whole or part, and will mark such documents, material, or media in accordance with this issuance.

When CUI is generated by non-DoD entities protective measures and dissemination controls, including those directed by relevant law, regulation, or government-wide policy, will be articulated in the contract, grant, or other legal agreement, as appropriate.

DoD contracts must require contractors to monitor CUI for aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information. DoD contracts require contractors to report the potential classification of aggregated or compiled CUI to a DoD representative.

Contractors, pursuant to mandatory DoD contract provisions, will submit unclassified DoD information for review and approval for release in accordance with the standard DoD Component processes and DoDI 5230.09.

All CUI records must follow the approved mandatory disposition authorities whenever the DoD provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220- 1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and this issuance.

### **10. Portable Electronic Devices (PEDs)**

A PED is defined as any non-stationary electronic apparatus with singular or multiple capabilities of, but not limited to recording, storing, and/or transmitting data, voice, video, or photo images (e.g., cell phones, laptops, tablets and wearable devices such as fitness bands and smart watches).

In accordance with NAVSEA 04 Ser 04/281 Implementation Plan for Allowing Camera-Portable Electronic Devices Within The Controlled Industrial Area, personally owned camera enabled PEDs will be authorized inside of the Controlled Industrial Area (CIA) and all Security Islands. Camera enabled PEDs will remain unauthorized within Controlled Nuclear Information Areas (CNIAs), Nuclear Work Areas (NWAs) and Open Storage Areas.

All PEDs, camera enabled or not, are still prohibited within NWAs and Open Storage Areas.

The allowance of camera enabled PEDs inside of the CIA and Security Islands does not negate existing photography policies. Unofficial photography, filming of video, or live streaming from the camera-enabled PED remains prohibited within the CIA or any NAVSEA controlled space outside of the CIA. Further, audio recordings (both digitally and magnetically) in NAVSEA spaces is prohibited without the approval of the Code 1120 Security Director.

Submarine SPECIFIC PEDs Instructions: In accordance with COMSUBLANT/ COMSUBPACINST 2075.IC, the use of PEDs while in or on Department of Navy Submarines are prohibited.

### **11. Contractor Manpower Reporting via Sam.gov**

The contractor shall report contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract for Norfolk Naval Shipyard Production Support via a secure data collection site. Contracted services excluded from reporting are based on Product Service Codes (PSCs). The excluded PSCs are:

- (1) W, Lease/Rental of Equipment.
- (2) X, Lease/Rental of Facilities.
- (3) Y, Construction of Structures and Facilities.
- (4) D, Automatic Data Processing and Telecommunications, IT and Telecom-Telecommunications Transmission (D304) and Internet (D322) ONLY.
- (5) S, Utilities ONLY.
- (6) V, Freight and Shipping ONLY.

The contractor is required to completely fill in all required data fields using the following web address [SAM.gov | Home](#).

Reporting inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. Contractors may direct questions to the help desk, linked at [SAM.gov | Help](#).

## **Requirements**

Production Support - Forklift

## Continuation of Packaging and Marking

## Continuation of Inspection and Acceptance

### Overall Contract Inspection/Acceptance Locations

|      |                                                                                                                                                                                                                                                                                                            |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: ASPERSOW</p> <p>DoDAAC: N42158<br/>CountryCode: USA</p> <p>NORFOLK NAVAL SHIPYARD GF<br/>1 NORFOLK NAVAL SHIPYARD, BUILDING 276<br/>PORTSMOUTH, VA 23709-1001<br/>UNITED STATES</p> <p>TBD, COR<br/>Telephone: TBD</p> |
| 0002 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: ASPERSOW</p> <p>DoDAAC: N42158<br/>CountryCode: USA</p> <p>NORFOLK NAVAL SHIPYARD GF<br/>1 NORFOLK NAVAL SHIPYARD, BUILDING 276<br/>PORTSMOUTH, VA 23709-1001<br/>UNITED STATES</p> <p>TBD, COR<br/>Telephone: TBD</p> |
| 0003 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: ASPERSOW</p> <p>DoDAAC: N42158<br/>CountryCode: USA</p> <p>NORFOLK NAVAL SHIPYARD GF<br/>1 NORFOLK NAVAL SHIPYARD, BUILDING 276<br/>PORTSMOUTH, VA 23709-1001<br/>UNITED STATES</p> <p>TBD, COR<br/>Telephone: TBD</p> |
| 0004 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: ASPERSOW</p> <p>DoDAAC: N42158<br/>CountryCode: USA</p>                                                                                                                                                                |

|      |                                                                                                                                                                                                                                                                                                            |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|      | <p>NORFOLK NAVAL SHIPYARD GF<br/>1 NORFOLK NAVAL SHIPYARD, BUILDING 276<br/>PORTSMOUTH, VA 23709-1001<br/>UNITED STATES</p> <p>TBD, COR<br/>Telephone: TBD</p>                                                                                                                                             |
| 0005 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: ASPERSOW</p> <p>DoDAAC: N42158<br/>CountryCode: USA</p> <p>NORFOLK NAVAL SHIPYARD GF<br/>1 NORFOLK NAVAL SHIPYARD, BUILDING 276<br/>PORTSMOUTH, VA 23709-1001<br/>UNITED STATES</p> <p>TBD, COR<br/>Telephone: TBD</p> |
| 0006 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: ASPERSOW</p> <p>DoDAAC: N42158<br/>CountryCode: USA</p> <p>NORFOLK NAVAL SHIPYARD GF<br/>1 NORFOLK NAVAL SHIPYARD, BUILDING 276<br/>PORTSMOUTH, VA 23709-1001<br/>UNITED STATES</p> <p>TBD, COR<br/>Telephone: TBD</p> |
| 0007 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: ASPERSOW</p> <p>DoDAAC: N42158<br/>CountryCode: USA</p> <p>NORFOLK NAVAL SHIPYARD GF<br/>1 NORFOLK NAVAL SHIPYARD, BUILDING 276<br/>PORTSMOUTH, VA 23709-1001<br/>UNITED STATES</p> <p>TBD, COR<br/>Telephone: TBD</p> |
| 0008 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: ASPERSOW</p> <p>DoDAAC: N42158<br/>CountryCode: USA</p>                                                                                                                                                                |



|      |                                                                                                                                                                                                                                                                                                            |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|      | <p>NORFOLK NAVAL SHIPYARD GF<br/>1 NORFOLK NAVAL SHIPYARD, BUILDING 276<br/>PORTSMOUTH, VA 23709-1001<br/>UNITED STATES</p> <p>TBD, COR<br/>Telephone: TBD</p>                                                                                                                                             |
| 0009 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: ASPERSOW</p> <p>DoDAAC: N42158<br/>CountryCode: USA</p> <p>NORFOLK NAVAL SHIPYARD GF<br/>1 NORFOLK NAVAL SHIPYARD, BUILDING 276<br/>PORTSMOUTH, VA 23709-1001<br/>UNITED STATES</p> <p>TBD, COR<br/>Telephone: TBD</p> |

## Continuation of Deliveries or Performance

Overall Contract Delivery Period

Contractor

Destination

| Line Item | Delivery Schedule                                                 | Quantity     | Address and POC |
|-----------|-------------------------------------------------------------------|--------------|-----------------|
| 0001      | Period of Performance<br>From<br>01 May 2026<br>To<br>30 Apr 2027 | 32,416 Hours |                 |
| 0002      | Period of Performance<br>From<br>01 May 2026<br>To<br>30 Apr 2027 | 8,104 Hours  |                 |
| 0003      | Period of Performance<br>From<br>01 May 2026<br>To<br>30 Apr 2027 | 30,592 Hours |                 |
| 0004      | Period of Performance<br>From<br>01 May 2026<br>To<br>30 Apr 2027 | 7,648 Hours  |                 |
| 0005      | Period of Performance<br>From<br>01 May 2026<br>To<br>30 Apr 2027 | 480 Hours    |                 |
| 0006      | Period of Performance<br>From<br>01 May 2026<br>To<br>30 Apr 2027 | 2,000 Hours  |                 |
| 0007      | Period of Performance<br>From<br>01 May 2026<br>To<br>30 Apr 2027 | 238 Hours    |                 |
| 0008      | Period of Performance<br>From<br>01 May 2026<br>To<br>30 Apr 2027 | 11,472 Hours |                 |
| 0009      | Period of Performance<br>From                                     | 2,295 Hours  |                 |

|  |                                  |  |  |
|--|----------------------------------|--|--|
|  | 01 May 2026<br>To<br>30 Apr 2027 |  |  |
|--|----------------------------------|--|--|

## Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

| Number    | Title                                                                           | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|---------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.203-3  | Gratuities.                                                                     | Apr 1984       |                      |                          |
| 52.204-13 | System for Award Management Maintenance.                                        | Oct 2018       |                      |                          |
| 52.204-18 | Commercial and Government Entity Code Maintenance.                              | Aug 2020       |                      |                          |
| 52.222-40 | Notification of Employee Rights Under the National Labor Relations Act.         | Dec 2010       |                      |                          |
| 52.222-44 | Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment. | May 2014       |                      |                          |
| 52.222-55 | Minimum Wages for Contractor Workers Under Executive Order 14026.               | Jan 2022       |                      |                          |
| 52.222-62 | Paid Sick Leave Under Executive Order 13706.                                    | Jan 2022       |                      |                          |
| 52.232-33 | Payment by Electronic Funds Transfer-System for Award Management.               | Oct 2018       |                      |                          |
| 52.204-21 | Basic Safeguarding of Covered Contractor Information Systems.                   | Nov 2021       |                      |                          |

DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                                                | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|----------------------------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.203-7000 | Requirements Relating to Compensation of Former DoD Officials.                                                       | Sep 2011       |                      |                          |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights.                                                             | Dec 2022       |                      |                          |
| 252.204-7004 | Antiterrorism Awareness Training for Contractors.                                                                    | Jan 2023       |                      |                          |
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting.                                               | May 2024       |                      |                          |
| 252.204-7018 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.                          | Jan 2023       |                      |                          |
| 252.204-7020 | NIST SP 800-171 DoD Assessment Requirements.                                                                         | Nov 2023       |                      |                          |
| 252.205-7000 | Provision of Information to Cooperative Agreement Holders.                                                           | Oct 2024       |                      |                          |
| 252.225-7056 | Prohibition Regarding Business Operations with the Maduro Regime.                                                    | Jan 2023       |                      |                          |
| 252.225-7060 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.                                      | Jun 2023       |                      |                          |
| 252.226-7001 | Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns. | Jan 2023       |                      |                          |
| 252.232-7003 | Electronic Submission of Payment Requests and Receiving Reports.                                                     | Dec 2018       |                      |                          |
| 252.232-7010 | Levies on Contract Payments.                                                                                         | Dec 2006       |                      |                          |
| 252.243-7002 | Requests for Equitable Adjustment.                                                                                   | Dec 2022       |                      |                          |
| 252.244-7000 | Subcontracts for Commercial Products or Commercial Services.                                                         | Nov 2023       |                      |                          |
| 252.247-7023 | Transportation of Supplies by Sea.                                                                                   | Oct 2024       |                      |                          |
| 252.204-7015 | Notice of Authorized Disclosure of Information for Litigation Support.                                               | Jan 2023       |                      |                          |
| 252.223-7008 | Prohibition of Hexavalent Chromium.                                                                                  | Jan 2023       |                      |                          |

FAR Clauses Incorporated by Full Text

52.222-42      **Statement of Equivalent Rates for Federal Hires.**      **(May 2014)**

STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor ( 29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5 332.

This Statement is for Information Only: It is not a Wage Determination

| Employee Class         | Monetary Wage-Fringe Benefits |
|------------------------|-------------------------------|
| <u>Forklift Driver</u> | <u>17.75</u>                  |
| <u>      </u>          | <u>      </u>                 |

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| == | == |
| == | == |

(End of clause)

#### DFARS Clauses Incorporated by Full Text

#### 252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

##### WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

N/A

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

INVOICE 2 IN 1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

*[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]*

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| <i>Field Name in WAWF</i> | <i>Data to be entered in WAWF</i> |
|---------------------------|-----------------------------------|
| Pay Official DoDAAC       | <u>N50082</u>                     |
| Issue By DoDAAC           | <u>N42158</u>                     |
| Admin DoDAAC              | <u>N42158</u>                     |
| Inspect By DoDAAC         | <u>N42158</u>                     |
| Ship To Code              | <u>N42158</u>                     |
| Ship From Code            | ==                                |
| Mark For Code             | ==                                |

|                           |               |
|---------------------------|---------------|
| Service Approver (DoDAAC) | <u>N42158</u> |
| Service Acceptor (DoDAAC) | <u>N42158</u> |
| Accept at Other DoDAAC    | ==            |
| LPO DoDAAC                | <u>N42158</u> |
| DCAA Auditor DoDAAC       | ==            |
| Other DoDAAC(s)           | <u>050120</u> |

(\*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(\*\*Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

NNSY Accounts Payable Branch at NNSY\_C612@us.navy.mil

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)



# Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

## Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-5      **Contract Terms and Conditions Required To Implement Statutes or Executive Orders-  
Commercial Products and Commercial Services.**      (Oct 2025)

### CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 ( 19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☒ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) ( 31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204-30.

☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☒ (18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-6.

☐ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-7.

☒ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025)(15 U.S.C. 637(d)(2) and (3)).

☐ (21)

(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (NOV 2016) of 52.219-9.

☐ (iii) Alternate II (NOV 2016) of 52.219-9.

☐ (iv) Alternate III (JUN 2020) of 52.219-9.

☐ (v) Alternate IV (JAN 2025) of 52.219-9.

☐ (22)

(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (MAR 2020) of 52.219-13.

☒ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

☒ (26)

(i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (MAR 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

☒ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

☒ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025)(E.O. 13126).

☐ (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

☐ (34)

(i) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

☐ (ii) Alternate I (FEB 1999) of 52.222-26.

☒ (35)

(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (JUL 2014) of 52.222-35.

☒ (36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JUL 2014) of 52.222-36.

☒ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

☒ (39)

(i) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☒ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) ( 42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

- ☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☒ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 76711).
- ☐ (47)
- (i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).
- ☐ (ii) Alternate I (JAN 2017) of 52.224-3.
- ☐ (48)
- (i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (OCT 2022) of 52.225-1.
- ☐ (49)
- (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ☐ (ii) Alternate I [Reserved].
- ☐ (iii) Alternate II (JAN 2025) of 52.225-3.
- ☐ (iv) Alternate III (FEB 2024) of 52.225-3.
- ☐ (v) Alternate IV (Oct 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- ☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).
- ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).
- ☒ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).
- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).

☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

☒ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).

☐ (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (APR 2003) of 52.247-64.

☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☒ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ( 29U.S.C.206 and 41 U.S.C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

☒ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

☒ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)

(A) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

# Addendum to Contract Clauses

## Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                             | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|-------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.223-5  | Pollution Prevention and Right-to-Know Information.               | May 2024       |                      |                          |
| 52.228-5  | Insurance-Work on a Government Installation.                      | Jan 1997       |                      |                          |
| 52.232-39 | Unenforceability of Unauthorized Obligations.                     | Jun 2013       |                      |                          |
| 52.247-34 | F.o.b. Destination.                                               | Jan 1991       |                      |                          |
| 52.242-13 | Bankruptcy.                                                       | Jul 1995       |                      |                          |
| 52.204-9  | Personal Identity Verification of Contractor Personnel.           | Jan 2011       |                      |                          |
| 52.204-2  | Security Requirements.                                            | Mar 2021       |                      |                          |
| 52.232-18 | Availability of Funds.                                            | Apr 1984       |                      |                          |
| 52.203-12 | Limitation on Payments to Influence Certain Federal Transactions. | Jun 2020       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                            | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|----------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.201-7000 | Contracting Officer's Representative.                                            | Dec 1991       |                      |                          |
| 252.222-7006 | Restrictions on the Use of Mandatory Arbitration Agreements.                     | Jan 2023       |                      |                          |
| 252.225-7012 | Preference for Certain Domestic Commodities.                                     | Apr 2022       |                      |                          |
| 252.237-7010 | Prohibition on Interrogation of Detainees by Contractor Personnel.               | Jan 2023       |                      |                          |
| 252.204-7003 | Control of Government Personnel Work Product.                                    | Apr 1992       |                      |                          |
| 252.204-7023 | Reporting Requirements for Contracted Services.                                  | Jul 2021       |                      |                          |
| 252.223-7006 | Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials. | Sep 2014       |                      |                          |
| 252.225-7048 | Export-Controlled Items.                                                         | Jun 2013       |                      |                          |

### FAR Clauses Incorporated by Full Text

|          |                                                                                                     |                   |                    |                   |
|----------|-----------------------------------------------------------------------------------------------------|-------------------|--------------------|-------------------|
| 52.212-4 | <b>Contract Terms and Conditions-Commercial Products and Commercial Services.<br/>(Alternate I)</b> | <b>(Nov 2023)</b> | <b>Alternate I</b> | <b>(Nov 2021)</b> |
|----------|-----------------------------------------------------------------------------------------------------|-------------------|--------------------|-------------------|

*Alternate I* (NOV 2021). When a time-and-materials or labor-hour contract is contemplated, substitute the following paragraphs (a), (e), (i), (l), and (m) for those in the basic clause.

(a) *Inspection/Acceptance.* (1) The Government has the right to inspect and test all materials furnished and services performed under this contract, to the extent practicable at all places and times, including the period of performance, and in any event before acceptance. The Government may also inspect the plant or plants of the Contractor or any subcontractor engaged in contract performance. The Government will perform inspections and tests in a manner that will not unduly delay the work.

(2) If the Government performs inspection or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish and shall require subcontractors to furnish all reasonable facilities and assistance for the safe and convenient performance of these duties.

(3) Unless otherwise specified in the contract, the Government will accept or reject services and materials at the place of delivery as promptly as practicable after delivery, and they will be presumed accepted 60 days after the date of delivery, unless accepted earlier.

(4) At any time during contract performance, but not later than 6 months (or such other time as may be specified in the contract) after acceptance of the services or materials last delivered under this contract, the Government may require the Contractor to replace or correct services or materials that at time of delivery failed to meet contract requirements. Except as otherwise specified in paragraph (a)(6) of this clause, the cost of replacement or correction shall be determined under paragraph (i) of this clause, but the "hourly rate" for labor hours incurred in the replacement or correction shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified below, the portion of the "hourly rate" attributable to profit shall be 10 percent. The Contractor shall not tender for acceptance materials and services required to be replaced or corrected without disclosing the former requirement for replacement or correction, and, when required, shall disclose the corrective action taken. \_\_\_\_ [Insert portion of labor rate attributable to profit.]

(5)(i) If the Contractor fails to proceed with reasonable promptness to perform required replacement or correction, and if the replacement or correction can be performed within the ceiling price (or the ceiling price as increased by the Government), the Government may-

(A) By contract or otherwise, perform the replacement or correction, charge to the Contractor any increased cost, or deduct such increased cost from any amounts paid or due under this contract; or

(B) Terminate this contract for cause.



(ii) Failure to agree to the amount of increased cost to be charged to the Contractor shall be a dispute under the Disputes clause of the contract.

(6) Notwithstanding paragraphs (a)(4) and (5) above, the Government may at any time require the Contractor to remedy by correction or replacement, without cost to the Government, any failure by the Contractor to comply with the requirements of this contract, if the failure is due to-

(i) Fraud, lack of good faith, or willful misconduct on the part of the Contractor's managerial personnel; or

(ii) The conduct of one or more of the Contractor's employees selected or retained by the Contractor after any of the Contractor's managerial personnel has reasonable grounds to believe that the employee is habitually careless or unqualified.

(7) This clause applies in the same manner and to the same extent to corrected or replacement materials or services as to materials and services originally delivered under this contract.

(8) The Contractor has no obligation or liability under this contract to correct or replace materials and services that at time of delivery do not meet contract requirements, except as provided in this clause or as may be otherwise specified in the contract.

(9) Unless otherwise specified in the contract, the Contractor's obligation to correct or replace Government-furnished property shall be governed by the clause pertaining to Government property.

(e) *Definitions.* (1) The clause at FAR 52.202-1, Definitions, is incorporated herein by reference. As used in this clause-

(i) "Direct materials" means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

(ii) "Hourly rate" means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are-

(A) Performed by the contractor;

(B) Performed by the subcontractors; or

(C) Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

(iii) "Materials" means-

(A) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under a common control;

(B) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;

(C) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.);

(D) The following subcontracts for services which are specifically excluded from the hourly rate: *[Insert any subcontracts for services to be excluded from the hourly rates prescribed in the schedule.]*; and

(E) Indirect costs specifically provided for in this clause.

(iv) "Subcontract" means any contract, as defined in FAR subpart 2.1, entered into with a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract including transfers between divisions, subsidiaries, or affiliates of a contractor or subcontractor. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(i) *Payments.* (1) *Work performed.* The Government will pay the Contractor as follows upon the submission of commercial invoices approved by the Contracting Officer:

(i) *Hourly rate.*

(A) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed. Fractional parts of an hour shall be payable on a prorated basis.

(B) The rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by individuals that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(C) Invoices may be submitted once each month (or at more frequent intervals, if approved by the Contracting Officer) to the Contracting Officer or the authorized representative.

(D) When requested by the Contracting Officer or the authorized representative, the Contractor shall substantiate invoices (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment, individual daily job timecards, records that verify the employees meet the qualifications for the labor categories specified in the contract, or other substantiation specified in the contract.

(E) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis.

(1) If no overtime rates are provided in the Schedule and the Contracting Officer approves overtime work in advance, overtime rates shall be negotiated.

(2) Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract.

(3) If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(ii) *Materials.*

(A) If the Contractor furnishes materials that meet the definition of a commercial product at FAR 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the-

(1) Quantities being acquired; and

(2) Any modifications necessary because of contract requirements.

(B) Except as provided for in paragraph (i)(1)(ii)(A) and (D)(2) of this clause, the Government will reimburse the Contractor the actual cost of materials (less any rebates, refunds, or discounts received by the contractor that are identifiable to the contract) provided the Contractor-

(1) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(2) Makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(C) To the extent able, the Contractor shall-

(1) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(2) Give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that are identifiable to the contract.

(D) *Other Costs.* Unless listed below, other direct and indirect costs will not be reimbursed.

(1) *Other Direct Costs.* The Government will reimburse the Contractor on the basis of actual cost for the following, provided such costs comply with the requirements in paragraph (i)(1)(ii)(B) of this clause: \_\_\_\_ [Insert each element of other direct costs (e.g., travel, computer usage charges, etc. Insert "None" if no reimbursement for other direct costs will be provided. If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the elements of other direct charge(s) for that order or, if no reimbursement for other direct costs will be provided, insert 'None'."]

(2) *Indirect Costs (Material Handling, Subcontract Administration, etc.).* The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price: \_\_\_\_ [Insert a fixed amount for the indirect costs and payment schedule. Insert "\$0" if no fixed price reimbursement for indirect costs will be provided. (If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the fixed amount for the indirect costs and payment schedule or, if no reimbursement for indirect costs, insert 'None'.")]

(2) *Total cost.* It is estimated that the total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule and the Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the then stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performance of this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the then revised estimate of the total amount of effort to be required under the contract.

(3) *Ceiling price.* The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been

increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(4) *Access to records.* At any time before final payment under this contract, the Contracting Officer (or authorized representative) will have access to the following (access shall be limited to the listing below unless otherwise agreed to by the Contractor and the Contracting Officer):

(i) Records that verify that the employees whose time has been included in any invoice meet the qualifications for the labor categories specified in the contract;

(ii) For labor hours (including any subcontractor hours reimbursed at the hourly rate in the schedule), when timecards are required as substantiation for payment-

(A) The original timecards (paper-based or electronic);

(B) The Contractor's timekeeping procedures;

(C) Contractor records that show the distribution of labor between jobs or contracts; and

(D) Employees whose time has been included in any invoice for the purpose of verifying that these employees have worked the hours shown on the invoices.

(iii) For material and subcontract costs that are reimbursed on the basis of actual cost-

(A) Any invoices or subcontract agreements substantiating material costs; and

(B) Any documents supporting payment of those invoices.

(5) *Overpayments/Underpayments.* Each payment previously made shall be subject to reduction to the extent of amounts, on preceding invoices, that are found by the Contracting Officer not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. The Contractor shall promptly pay any such reduction within 30 days unless the parties agree otherwise. The Government within 30 days will pay any such increases, unless the parties agree otherwise. The Contractor's payment will be made by check. If the Contractor becomes aware of a duplicate invoice payment or that the Government has otherwise overpaid on an invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6)(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury, as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, and then at the rate applicable for each six month period as established by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final Decisions.* The Contracting Officer will issue a final decision as required by 33.211 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt in a timely manner;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR 32.608-2 in effect on the date of this contract.

(viii) Upon receipt and approval of the invoice designated by the Contractor as the "completion invoice" and supporting documentation, and upon compliance by the Contractor with all terms of this contract, any outstanding balances will be paid within 30 days unless the parties agree otherwise. The completion invoice, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 1 year (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(7) *Release of claims.* The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions.

(i) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible to exact statement by the Contractor.

(ii) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(iii) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(8) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(9) *Electronic Funds Transfer (EFT).* If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(10) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid an amount for direct labor hours (as defined in the Schedule of the contract) determined by multiplying the number of direct labor hours expended before the effective date of termination by the hourly rate(s) in the contract, less any hourly rate payments already made to the Contractor plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system that have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

## 52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

### AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS[insert regulation name] (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

**52.252-2      Clauses Incorporated by Reference.**

**(Feb 1998)**

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/browse/index/far>

DFARS: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

NMCARS: <https://www.secnav.navy.mil/rda/DASN-P/Pages/NMCARS.aspx>

(End of clause)

**Additional Regulation or Supplemental Clauses Incorporated by Full Text**

**G-242-H001      GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND RESPONSIBILITIES (NAVSEA) (OCT 2023)**

**(Oct 2023)**

- (a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.
- (b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.
- (c) The points of contact are as follows:

- (i) The Procuring Contracting Officer (PCO) is:

Name: Denise Swain  
Address:  
65 1st Floor Rm 101  
Portsmouth, Virginia 23709  
Phone: 757-396-2206  
E-mail: [denise.j.swain.civ@us.navy.mil](mailto:denise.j.swain.civ@us.navy.mil)

- (ii) The Contract Specialist is:

Name: Jordan Moore  
Address:  
65 1st Floor Rm 101  
Portsmouth, Virginia 23709  
Phone: 757-396-8359  
E-mail: [jordan.e.moore.civ@us.navy.mil](mailto:jordan.e.moore.civ@us.navy.mil)

- (iii) The Administrative Contracting Officer (ACO) is:

Name: [ \* ]  
Address:  
[ \*Street ]  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

- (d) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is

beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and responsibilities, will be provided upon award of this contract.

The Contracting Officer's Representative (COR) is:

Name: [ \* ]  
Address:  
[ \*Street ]  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

(e) The Alternate Contracting Officer's Representative (ACOR) is responsible for COR responsibilities and functions in the event that the COR is unavailable due to leave, illness, or other official business. The ACOR is appointed by the contracting officer; a copy of the ACOR appointment will be provided upon award of this contract.

The Alternate Contracting Officer's Representative (ACOR) is:

Name: [ \* ]  
Address:  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

(f) The Technical Point of Contact (TPOC) is the contracting officer's representative for technical matters when a COR is not appointed. The TPOC is responsible for technical issues of contract administration, such as providing all items of Government Furnished Information (GFI), Government Furnished Material (GFM) and Government Furnished Equipment (GFE) if specified in the contract as well as the inspection and acceptance of all contract deliverables.

The Technical Point of Contact (TPOC) is:

Name: [ \* ]  
Address: [ \*Street ]  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

(g) The Alternate Technical Point of Contact (ATPOC) is responsible for TPOC responsibilities and functions in the event that the TPOC is unavailable due to leave, illness, or other official business.

The Alternate Technical Point of Contact (ATPOC) is:

Name: [ \* ]  
Address:  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

(h) The Authorized Ordering Person(s) for Per-Call Maintenance is responsible for issuing and maintaining records for any per-call orders for remedial maintenance placed under this contract. No per-call order shall be placed outside the scope of this contract and the cumulative total of all orders shall not be in excess of any not-to-exceed amount specified in the contract. Per-call orders shall not, in any way, modify any terms and conditions of the contract.

(i) The Authorized Ordering Person(s) for Per-Call Maintenance is:

Name: [ \* ]  
Address:  
[ \*Street ]  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx];  
E-mail: [ \* ]

(j) The Contractor's point of contact for performance under this contract is:

Name: [ \* ]  
Address:  
[ \*Street ]  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

[ \* ] To be completed at contract award

**(End of Text)**

**G-232-H002 H002 PAYMENT INSTRUCTIONS (NAVSEA) (FEB 2024)**

**(Feb 2024)**

**Payment office allocation methods can be found in the table at DFARS PGI 204.7108(b)(2) ([https://www.acq.osd.mil/dpap/dars/pgi/pgi\\_hm/current/PGI204\\_71.htm#payment\\_instructions](https://www.acq.osd.mil/dpap/dars/pgi/pgi_hm/current/PGI204_71.htm#payment_instructions)).**

**(End of text)**

**G-232-H005 SUPPLEMENTAL INSTRUCTIONS REGARDING INVOICING (NAVSEA) (JAN 2019)**

**(Jan 2019)**

(a) For other than firm fixed priced contract line item numbers (CLINs), the Contractor agrees to segregate costs incurred under this contract/task order (TO), as applicable, at the lowest level of performance, either at the sub line item number (SLIN) or CLIN level, rather than at the total contract/TO level, and to submit invoices reflecting costs incurred at that level. Supporting documentation in Wide Area Workflow (WAWF) for invoices shall include summaries of work charged during the period covered as well as overall cumulative summaries by individual labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost break down of other direct costs (ODCs), materials, and travel, by technical instruction (TI), SLIN, or CLIN level. For other than firm fixed price subcontracts, subcontractors are also required to provide labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost breakdown of ODCs, materials, and travel invoiced. Supporting documentation may be encrypted before submission to the prime contractor for WAWF invoice submittal. Subcontractors may email encryption code information directly to the Contracting Officer and Contracting Officer Representative (COR). Should the subcontractor lack encryption capability, the subcontractor may also email detailed supporting cost information directly to the Contracting Officer and COR; or other method as agreed to by the Contracting Officer.

(b) Contractors submitting payment requests and receiving reports to WAWF using either Electronic Data Interchange (EDI) or Secure File Transfer Protocol (SFTP) shall separately send an email notification to the COR and Contracting Officer on the same date they submit the invoice in WAWF. No payments shall be due if the contractor does not provide the COR and Contracting Officer email notification as required herein.

**(End of Text)**

**C-223-W002 ON-SITE SAFETY REQUIREMENTS (NAVSEA) (OCT 2018)**

**(Oct 2018)**

(a) The contractor shall ensure that each contractor employee reads any necessary safety documents within 30 days of commencing performance at any Government facility. Required safety documents can be obtained from the respective safety office. Contractors shall notify the Safety office points of contact below to report completion of the required training via email. The email shall include the contractor employee's name, work site, and contract number.

(b) It is expected that contractor employees will have received training from their employer on hazards associated with the areas in which they will be working and know what to do in order to protect themselves. Contractors are required to adhere to the requirements of 29 CFR 1910, 29 CFR 1926 and applicable state and local requirements while in Government spaces. The contractor shall ensure that all on-site contractor work at the Government facility is in accordance with any local safety instructions as provided via the COR. The contractor shall report all work-related injuries/illnesses that occurred while working at the Government site to the COR.

(c) Contractors whose employees perform work within Government spaces in excess of 1000 hours per calendar quarter during a calendar year shall submit the data elements on OSHA Form 300A, Summary of Work Related Injuries and Illnesses, for those employees to the safety office, via the COR by 15 January for the previous calendar year, even if no work related injuries or illnesses occurred. If a contractor's injury/illness rates are above the Bureau of Labor Statistics industry standards, a safety assessment may be performed by the Safety Office to determine if any administrative or engineering controls can be utilized to prevent further injuries/illnesses, or if any additional Personal Protective Equipment or training will be required.

(d) Any contractor employee exhibiting unsafe behavior may be removed from the Government site. Such removal shall not relieve the contractor from meeting its contractual obligations and shall not be considered an excusable delay as defined in FAR 52.249-14.

(e) The Safety Office points of contacts are as follows:

\_\_\_COR, TPOC, See PWS\_\_\_

**(End of Text)**

**C-202-H001 ADDITIONAL DEFINITIONS--BASIC**

**(Oct 2018)**

(a) Department means the Department of the Navy.

(b) Commander, Naval Sea Systems Command means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.

(c) References to The Federal Acquisition Regulation (FAR) All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.

(d) National Stock Numbers Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and acronyms shall be interpreted as National Item Identification Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:

(1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven digit nonsignificant number.

(2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

**(End of Text)**

**G-242-H002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021)**

**(Jul 2021)**

(a) The policy of this activity is to schedule periods of reduced operations or shutdown during holiday periods. Deliveries will not be accepted on Saturdays, Sundays or Holidays except as specifically requested by the [insert activity name]. All goods or services attempted to be delivered on a Saturday, Sunday or Holiday without specific instructions from the Contracting Officer or his duly appointed representative will be returned to the contractor at the contractor's expense with no cost or liability to the U. S. Government.

(b) The federal Government observes public Holidays that have been established under 5 U.S.C. 6103. The actual date of observance for each of the holidays, for a specific calendar year, may be obtained from the OPM website at OPM.GOV or by using the following direct link: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>.

(c) Delayed Opening, Early Dismissal and Closure of Government Facilities. When a Government facility has a delayed opening, is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off, but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent company policy regarding whether they should go/stay home or report to another company facility. Subsequent to an early dismissal, delayed opening, or during periods of inclement weather, onsite contractors should monitor the OPM website as well



as radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

(d) When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non-working hours to the contract. Contractors are responsible for predetermining and disclosing their charging practices for early dismissal, delayed openings, or closings in accordance with the FAR, applicable cost accounting standards, and the company's established policy and procedures. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy and procedures.

(e) If you intend to visit the Contracts Office, it is advised that you call for an appointment at least 24 hours in advance.

(f) The hours of operation are as follows:

| AREA                   | FROM | TO   |
|------------------------|------|------|
| Norfolk Naval Shipyard | 0720 | 1550 |

(g) All deliveries to the Receiving Officer, TPOC, shall be made Monday through Friday from 0730 to 630, local time. Deliveries will not be accepted after 1630. No deliveries will be accepted on federal government holidays.

**(End of Text)**

**C-211-H018 APPROVAL BY THE GOVERNMENT (NAVSEA) (JAN 2019)**

**(Jan 2019)**

Approval by the Government as required under this contract and applicable specifications shall not relieve the Contractor of its obligation to comply with the specifications and with all other requirements of the contract, nor shall it impose upon the Government any liability it would not have had in the absence of such approval.

**(End of Text)**

# List of Contract Documents, Exhibits, or Attachments

## Solicitation Provisions

### FAR Clauses Incorporated by Reference

| Number    | Title                                            | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|--------------------------------------------------|----------------|----------------------|--------------------------|
| 52.204-16 | Commercial and Government Entity Code Reporting. | Aug 2020       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                          | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.203-7005 | Representation Relating to Compensation of Former DoD Officials.                               | Sep 2022       |                      |                          |
| 252.204-7008 | Compliance with Safeguarding Covered Defense Information Controls.                             | Oct 2016       |                      |                          |
| 252.204-7019 | Notice of NIST SP 800-171 DoD Assessment Requirements.                                         | Nov 2023       |                      |                          |
| 252.204-7024 | Notice on the Use of the Supplier Performance Risk System.                                     | Mar 2023       |                      |                          |
| 252.225-7055 | Representation Regarding Business Operations with the Maduro Regime.                           | May 2022       |                      |                          |
| 252.225-7059 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation. | Jun 2023       |                      |                          |
| 252.204-7000 | Disclosure of Information.                                                                     | Oct 2016       |                      |                          |

### FAR Clauses Incorporated by Full Text

**52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)**

#### REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

*Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component* have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that-

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

(a) *Definitions.* As used in this provision-

*Administrative proceeding* means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

*Federal contracts and grants with total value greater than \$10,000,000* means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

*Principal* means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

- (A) The payment of a monetary fine or penalty of \$5,000 or more; or
- (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

## DFARS Clauses Incorporated by Full Text

**252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)**

### PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

**252.215-7008 Only One Offer.**

**(Dec 2022)**

#### ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable \_\_\_\_ [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

**252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation.**

**(Dec 2019)**

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions*. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation*. The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

# Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

## 52.212-1 INSTRUCTIONS TO OFFERORS--COMMERCIAL ITEMS (FEB 2012) ADDENDUM

This requirement will be prepared in accordance with the information in FAR Subpart 12.6 and FAR Subpart 13.5, using Simplified Acquisition Procedures as supplemented with the additional information included in this notice.

Interested offerors shall submit their offers via email as a single Adobe Acrobat .pdf attachment to Jordan Moore (email: jordan.e.moore.civ@us.navy.mil; telephone: (757) 396-8359) and Denise Swain (email: denise.j.swain.civ@us.navy.mil; telephone: (757) 396-2206) no later than the deadline listed in Block 08 of page 01 of this SF 1449.

Acknowledgement of timely receipt of offers will be made by Jordan Moore as soon as practicable upon receipt. Late offers will also be acknowledged as such and may not be considered by the Government.

The offer shall consist of one signed copy of:

1. A completed and signed standard form SF1449 with unit prices for each line item;
2. Executed copies of any amendments (if applicable);
3. Completed FAR 52.212-3 Representations and Certifications;
4. Technical capability information (Management Plan and Staffing Plan);
5. Past performance information;
6. Price.

The technical information, past performance, and price shall be submitted as follows:

### 1. TECHNICAL CAPABILITY / MANAGEMENT CAPABILITY:

Offerors will submit a Management Plan that demonstrates their capacity to perform the work outlined in the solicitation. The Management Plan shall describe the Offeror's organizational structure, staffing approach, and riskmitigation methods. The Government will evaluate the Management Plan to determine the extent to which it demonstrates adequate staffing, sufficient resources, and an overall likelihood of successful performance.

Risk, as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an Offeror's demonstrated capacity to satisfy the Government's requirement may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

Offerors will also submit a Staffing Plan of how to fulfill the requirements outlined in the Performance Work Statement (PWS). The Staffing Plan will represent the assessment of how well the offeror understand and propose to fulfill the requirements outlined in the Performance Work Statement (PWS).

The Contractor's proposal shall include resumes of the employees nominated as "Key Personnel." Key Personnel resumes will be evaluated as part of the Technical Capability factor. Failure to provide Key Personnel resumes that meet or exceed the following requirements will result in an offeror receiving an Unacceptable rating. Refer to CDRL A007.

The Contractor shall provide Key Personnel that have documented work history proving overall technical competence and who possess knowledge of trade theory and up-to-date trade practices in the ship repair industry.

1.1 The Key Personnel must:

- 1.1.1 Have the ability to read and interpret instructions, specifications and blueprints.
- 1.1.2 Be knowledgeable in the operation of powered machinery/tooling/equipment relevant to the trade skills.
- 1.1.3 Be knowledgeable in the use of precision measuring instruments normally associated with cognizant shipyard trades.
- 1.1.4 Be familiar with materials associated with the ship repair industry.
- 1.1.5 Have the ability to recognize working conditions or use of materials that require initiation of safety precautions and have the PPE for said conditions or materials.
- 1.1.6 Have working knowledge on how to read and understand the information provided in a MSDS.
- 1.1.7 Supervisor must be qualified to wear safety harnesses and work from scaffolds or platforms where drop off will be greater than five (5) feet.
- 1.1.8 Project and program manager must have experience wearing safety harnesses and working from scaffolds or platforms where drop off will be greater than five (5) feet.

1.2 Program and Project Manager (Key Personnel, resume required)

- 1.2.1 Education: This position requires a minimum of a high school diploma and/or successful completion of a related trade or industrial school.
- 1.2.2 Experience: This position requires 10 years of experience as a project manager and/or supervisor in repair and maintenance efforts onboard U.S. Navy ships.

1.3 Supervisor (Key Personnel, resume required)

- 1.3.1 Education: The Supervisor position requires a minimum of a high school diploma and/or successful completion of a related trade or industrial school.
- 1.3.2 Experience: The Supervisor position requires 5 years of experience as a supervisor in repair and maintenance efforts onboard U.S. Navy ships in a related trade skill.

**2. PAST PERFORMANCE:**

The offeror shall provide information on a minimum of one but no more than three previous contracts whose effort was relevant to the effort required by this solicitation.

The contracts must have been performed five (5) years from the closing date of the solicitation.



Evaluation will focus only on performance that has already occurred. Offerors shall provide a detailed explanation demonstrating the relevance of the prior contract(s) to the requirements of the solicitation.

Yet-to-be performed work and work performed prior to five (5) years from the closing date of the solicitation will not be considered.

### **3. PRICE:**

The offeror shall complete the Pricing Sheet. Quotes are valid for 60 days after the solicitation closing date.

### **QUESTIONS:**

Offerors may submit questions regarding clarification of solicitation requirement to Jordan Moore by email at [Jordan.e.moore.civ@us.navy.mil](mailto:Jordan.e.moore.civ@us.navy.mil) by 8:00 AM EST on 04 FEBRUARY 2026. ANY QUESTIONS RECEIVED AFTER THIS DATE MAY NOT BE ANSWERED

## Evaluation - Commercial Products and Commercial Services

### Addendum to Evaluation - Commercial Product and Commercial Services

#### 52.212-2 EVALUATION - COMMERCIAL ITEMS (ADDENDUM)

(a) The Government will award a contract resulting from this RFQ to the responsible vendor whose proposal, in full compliance with the RFQ, is deemed most advantageous to the Government, considering price and other factors. The following factors shall be used to evaluate offers:

Technical Capability

Past Performance

Price

The Government intends to evaluate proposals and award based on initial proposals. Therefore, the Offeror's initial proposal should contain the Offeror's best terms from a cost/price standpoint. The Government intends to award a Firm Fixed Price (FFP), single-award contract covering a base year. This solicitation will be competed on a Small Business set-aside.

In accordance with FAR 15.101-2, an award will be made to the responsible offeror who receives an acceptable rating in technical and past performance and provides the lowest evaluated price, representing the best value to the Government.

Offerors who fail to possess the required technical capability will not be considered for award and the other elements of their offer will not be evaluated.

The Government also reserves the right to not award a contract if a contract award is not in the best interest of the Government.

**TECHNICAL CAPABILITY / MANAGEMENT CAPABILITY:** The Government will evaluate the offeror's technical capability as either acceptable, or unacceptable, based on their submission of a Management Plan and Staffing Plan. In accordance with FAR 52.2121, key personnel are required and will be evaluated to determine their ability to perform the requirements outlined in the Performance Work Statement (PWS). The Management Plan will determine the Offeror's ability to provide adequate staffing, sufficient resources, and an overall likelihood of successful performance. The Staffing Plan will represent the assessment of how well the offeror understand and propose to fulfill the requirements outlined in the Performance Work Statement.

These document should clearly outline their understanding of the requirements, proposed execution strategies, and operational readiness.

Technical Capability will be evaluated to determine an overall rating of "Acceptable" or "Unacceptable".

| Adjectival Rating | Description                                          |
|-------------------|------------------------------------------------------|
| Acceptable        | Proposal meets the requirements of the solicitation. |
|                   |                                                      |

|              |                                                              |
|--------------|--------------------------------------------------------------|
| Unacceptable | Proposal does not meet the requirements of the solicitation. |
|--------------|--------------------------------------------------------------|

Contractors who fail to possess an acceptable technical rating will not be considered for award and the other elements of their quotation will not be evaluated.

-

**PAST PERFORMANCE:** The Government will assess the degree of confidence it has in each offeror's ability to perform the services described in the Performance Work Statement based on the offeror's demonstrated record of past performance.

That degree of confidence will be assessed based on the relevance of the offeror's past performance and the recency of that past performance.

Relevance is determined by those aspects of an Offerors history of contract (or subcontract) performance that would provide the most context and give the greatest ability to measure whether the Offeror will successfully satisfy the current requirement.

Recency is generally expressed as a time period during which past performance references are considered relevant, and is critical to establishing the relevancy of past performance information. Per Addendum to FAR 52.212-1, Offerors shall provide Past Performance references from the past five (5) years.

In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the offeror may not be evaluated favorably or unfavorably on past performance (see FAR 15.305 [a][2][iv]). Therefore, the offeror shall be determined to have unknown past performance.

| Adjectival Rating | Description                                                                                                                                                                                                             |
|-------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Acceptable        | Based on the offeror's performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort, or the offeror's performance record is unknown (see note above). |
| Unacceptable      | Based on the offeror's performance record, the Government does not have a reasonable expectation that the offeror will be able to successfully perform the required effort                                              |

## **PRICE**

The Government will evaluate the Offeror's proposed price to determine price reasonableness in accordance with FAR 13.106-3.

The Government will multiply the estimated quantities provided in the schedule by the unit pricing proposed to determinate the estimated amount for each line item.

The estimated amount for each line item will then be added together to determine the total estimated price which will become the evaluated price.

The vendor's proposed price will be evaluated on the basis of price reasonableness. All prices must be considered fair and reasonable as determined by the Government. Price quote shall be held firm and valid for sixty (60) days.

# Offeror Representations and Certifications - Commercial Products and Commercial Services

## FAR Clauses Incorporated by Full Text

### 52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services (Oct 2025)

#### OFFEROR REPRESENTATIONS AND CERTIFICATIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision-

*Covered telecommunications equipment or services* has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

*Economically disadvantaged women-owned small business (EDWOSB) concern* means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

*Forced or indentured child labor* means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

*Highest-level owner* means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

*Immediate owner* means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

*Inverted domestic corporation*, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

*Manufactured end product* means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

*Place of manufacture* means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

*Predecessor* means an entity that is replaced by a successor and includes any predecessors of the predecessor.

*Reasonable inquiry* has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

*Restricted business operations* means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended. "Sensitive technology"-

*Sensitive technology-*

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-
  - (i) To restrict the free flow of unbiased information in Iran; or
  - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

*Service-disabled veteran-owned small business (SDVOSB) concern* means a small business concern-

- (1)
  - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
  - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).
- (3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

*Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program* means an SDVOSB concern that-

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

*Service-disabled veteran-owned small business (SDVOSB) Program* means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

*Small business concern-*

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.
- (2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

*Small disadvantaged business concern*, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

*Subsidiary* means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

*Successor* means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

*Veteran-owned small business concern* means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

*Women-owned business concern* means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

*Women-owned small business concern* means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

*Women-owned small business (WOSB) concern eligible under the WOSB Program* (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs \_\_\_\_.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that-

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [ *The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.* ]

(2) *Veteran-owned small business concern.* [ *Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.* ] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [ *Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.* ] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [ *Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.* ] [ *The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.* ]

(5) *Small disadvantaged business concern.* [ *Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.* ] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [ *Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.* ] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [ *The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.* ]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [ *The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.* ]

**Note to paragraphs (c)(9) and (10):** Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [ *Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.* ] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: \_\_\_\_\_

(11) *HUBZone small business concern.* [ *Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.* ] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [ *The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.* ] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246-

(1) *Previous contracts and compliance.* The offeror represents that-

(i) It ☐ has, ☐ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It ☐ has, ☐ has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that-



(i) It ☐ has developed and has on file, ☐ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It ☐ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$200,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

| Line Item No. | Country of Origin | Exceeds 55% domestic content (yes/no) |
|---------------|-------------------|---------------------------------------|
| ==            | ==                | ==                                    |
| ==            | ==                | ==                                    |
| ==            | ==                | ==                                    |

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. ==

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, *Buy American-Free Trade Agreements-Israeli Trade Act*, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

| Line Item No. | Country of Origin |
|---------------|-------------------|
| ==            | ==                |
| ==            | ==                |
| ==            | ==                |

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

*Other Foreign End Products:*

| Line Item No. | Country of Origin | Exceeds 55% domestic content (yes/no) |
|---------------|-------------------|---------------------------------------|
| ==            | ==                | ==                                    |
| ==            | ==                | ==                                    |

|    |    |    |
|----|----|----|
| == | == | == |
|----|----|----|

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. ==

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

*Israeli End Products:*

| Line Item No. |
|---------------|
| ==            |
| ==            |
| ==            |

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

| Line Item No. | Country of Origin |
|---------------|-------------------|
| ==            | ==                |

|    |    |
|----|----|
| == | == |
| == | == |

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

*Other End Products:*

| Line Item No. | Country of Origin |
|---------------|-------------------|
| ==            | ==                |
| ==            | ==                |
| ==            | ==                |

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

| Listed End Product | Listed Countries of Origin |
|--------------------|----------------------------|
| =====              | =====                      |
| =====              | =====                      |

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

# (i) ☐

# (ii) ☐

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

# (1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

# (2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* ( 26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: \_\_\_\_\_.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

class="p">

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

- ☐ Sole proprietorship;
- ☐ Partnership;
- ☐ Corporate entity (not tax-exempt);
- ☐ Corporate entity (tax-exempt);
- ☐ Government entity (Federal, State, or local);
- ☐ Foreign government;
- ☐ International organization per 26 CFR1.6049-4;
- ☐ Other \_\_\_\_.

(5) *Common parent.*

- ☐ Offeror is not owned or controlled by a common parent;
- ☐ Name and TIN of common parent:

Name \_\_\_\_.

TIN \_\_\_\_.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that-

- (i) It ☐ is, ☐ is not an inverted domestic corporation; and
- (ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

- (i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and
- (ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: \_\_\_\_.

Immediate owner legal name: \_\_\_\_.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: \_\_\_\_.

Highest-level owner legal name: \_\_\_\_.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: \_\_\_\_ (or mark "Unknown").

Predecessor legal name: \_\_\_\_.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals.* Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].



(i) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported: \_\_\_\_\_.

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

# Addendum to Solicitation Provisions

## FAR Clauses Incorporated by Reference

| Number   | Title                        | Effective Date | Alternate/ Deviation | Variation Effective Date |
|----------|------------------------------|----------------|----------------------|--------------------------|
| 52.204-7 | System for Award Management. | Nov 2024       |                      |                          |

## FAR Clauses Incorporated by Full Text

### 52.204-26 Covered Telecommunications Equipment or Services-Representation. (Oct 2020)

#### COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c)

(1) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

### 52.204-29 Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures. (Dec 2023)

#### FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS-REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(c) *Procedures.*

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)( <https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

**52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.**

**(Jun 2020)**

**TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)**

(a) *Definitions.* As used in this provision-

*Foreign person* means any person other than a United States person.

*Specified Federal procurement payment* means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

*United States person* as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at [www.irs.gov/w14](http://www.irs.gov/w14). Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)